

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CHILE

## *Complete Community Opposition How-To*

*This guide uses the Chilean terms you'll actually run into — the SEIA and its RCA, the participación ciudadana, the recurso de reclamación, the Tribunal Ambiental, the recurso de protección, the consulta indígena — and explains each in plain words the first time.*

## INTRODUCTION & FRAMEWORK

Chile's most famous environmental victory came from two wild rivers in Patagonia and a movement that refused to accept that damming them was inevitable. In 2007 the energy companies Endesa and Colbún proposed **HidroAysén**: five megadams on the **Baker and Pascua Rivers** in the Aysén region, an eight-billion-dollar scheme that would have flooded thousands of hectares and strung a transmission line nearly two thousand kilometres north to the cities of the centre. Against it rose **Patagonia Sin Represas — "Patagonia Without Dams"** — a coalition that began in the small town of Cochrane and grew, through the Consejo de Defensa de la Patagonia, into the largest environmental struggle in Chile's history. Over more than seven years — an assessment that drew **over ten thousand public comments**, a permit approved eleven-to-one in 2011, a Supreme Court loss in 2012, mass demonstrations across the country — the movement kept fighting. On **10 June 2014**, the **Committee of Ministers unanimously overturned the project's environmental permits**, after weighing thirty-five separate appeals against them. HidroAysén was dead, and two of the wildest rivers on Earth still run free.

Patagonia Sin Represas drew on tools available to communities across Chile, which has built, since around 2010, a purpose-made environmental architecture. The **environmental assessment** and its citizen participation are the first gate — HidroAysén's drew over ten thousand public comments. Three specialised **environmental courts** and an **enforcement superintendence** are real, technical places to fight, if you know how to use them. The **constitutional protection action** and **Indigenous consultation** are further levers. And Chile has ratified the **Escazú Agreement** — the regional treaty on access to environmental information, participation, justice, and, uniquely, the protection of environmental defenders. But the deepest lesson HidroAysén teaches is one of mindset, and this guide places it first: at the outset almost everyone assumed the dams were a done deal — "it's dams or coal," people shrugged — and a remote community and its allies overturned that assumption by organising, enduring, and using every one of these levers over more than seven years, through a permit approved eleven-to-one and even a Supreme Court loss, until the Committee of Ministers overturned the permits outright. The presumption that a project is inevitable is itself the first thing a campaign must refuse.

## The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A major Chilean project needs its environmental permit — the **RCA** — from the assessment system; where it affects Indigenous peoples it needs **consulta**; it can be challenged before the **environmental courts** and, on constitutional grounds, the ordinary courts; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

## Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the assessment is flawed, the participation was inadequate, or Indigenous rights were ignored, Chile's tools genuinely bite** — the environmental courts and the Committee of Ministers have overturned permits, and the Supreme Court has voided an RCA for skipping citizen participation.
- **If the state and powerful companies back the project and the process was clean, it's a long war** — HidroAysén took seven years and survived a permit approved eleven-to-one and a Supreme Court loss before the movement won.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the participation, the reclamación, the environmental courts, the protección, consulta — and **run every front at once**: the documents, the participation, the courts, the movement, the press. That's how HidroAysén was won.

## HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

### Who Actually Decides

The core decision is the **RCA** (*Resolución de Calificación Ambiental*), issued through the **SEIA** — the environmental assessment system run by the **SEA** (*Servicio de Evaluación Ambiental*) and its regional Commissions. A project enters via a full **EIA** (*Estudio de Impacto Ambiental*) or a lighter **DIA** (*Declaración de Impacto Ambiental*). The **SMA** (*Superintendencia del Medio Ambiente*) enforces compliance and can sanction and revoke. And appeals against an EIA's RCA go first to the **Committee of Ministers** — the body that killed HidroAysén. Know which route your project took, because it sets how you challenge it.

### How a Project Moves — and Where You Jump In

**The assessment and citizen participation (PAC).** The developer files the EIA or DIA; there's a **participación ciudadana** stage — mandatory for an EIA, and available for a DIA that imposes environmental burdens (*cargas ambientales*) on nearby communities, usually for 20 days. *Your opening — and it arms every later step*: file substantive **observations**. The SEA must respond to them in the RCA, and only those who filed observations can later reclaim.

**The RCA.** The Commission issues the permit. *Your opening*: an RCA built on a defective study, an inadequate participation, or a skipped consulta can be challenged.

**Construction and operation.** *Your opening*: breaches of the RCA's conditions — reported to the SMA, which can sanction and revoke.

### Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the RCA not final or under challenge, the financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors, often international, with their own environmental standards.

### Who's Supposed to Be Watching

Each is an ally or an arena. The **SEA** runs the assessment and must answer your observations. The **Committee of Ministers** hears appeals against an EIA's permit — and has overturned them. The three **environmental courts** (*Tribunales Ambientales*) review RCAs and SMA decisions, with appeal to the

**Supreme Court.** The **SMA** enforces and can revoke. The ordinary courts hear the **recurso de protección** on the constitutional environmental right. The **Comptroller General** examines the legality of official acts. And Chile's **strong environmental movement, its Indigenous organisations, and a free press** are the forces that reach furthest — the coalition that made Patagonia Sin Represas.

## QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the assessment or participation was flawed, whether Indigenous rights are engaged, and how set the state and the companies are on the project.

| What you do                                                           | Roughly works | How long          | Cost    | What "works" means                          |
|-----------------------------------------------------------------------|---------------|-------------------|---------|---------------------------------------------|
| Just gather documents                                                 | 5–10%         | weeks             | low     | The base for everything else                |
| Observations in the PAC                                               | 15–35%        | during assessment | low     | On record; conditions; unlocks reclamación  |
| Recurso de reclamación (Committee of Ministers)                       | 25–50%        | months            | low     | Permit overturned or sent back              |
| Case before the environmental court (→ Supreme Court)                 | 30–55%        | 1–3 yr            | low–mod | RCA annulled                                |
| Recurso de protección (constitutional)                                | 25–50%        | weeks–months      | low     | RCA suspended/voided; participation ordered |
| Consulta indígena (ILO 169)                                           | 30–55%        | varies            | low     | Project blocked for want of proper consulta |
| Mass mobilisation + media                                             | 30–55%        | months–yr         | low     | Political cost; project reconsidered        |
| <b>Everything together (flaws/Indigenous rights, public watching)</b> | <b>40–65%</b> | 1–5 yr            | low–mod | Overturned, annulled, delayed, changed      |
| <b>Everything together (state/company-backed, clean process)</b>      | <b>20–45%</b> | years             | mod     | Delayed, conditioned, exposed, worn down    |

The levers that move the needle most are the **Committee of Ministers reclamación**, the **environmental courts**, and the **recurso de protección**, reinforced by **consulta** and the movement. HidroAysén shows the ceiling (a mega-scheme overturned) and the floor (seven years, and a permit and a court lost along the way). Most fights sit between, and honest wins include an overturned or conditioned RCA, delay, and exhaustion as much as a clean stop.

*On cost: participating, documenting, and organising are cheap; the reclamación and the environmental courts are designed to be accessible; and the recurso de protección is fast and low-cost. Chile's environmental architecture genuinely gives ordinary people places to fight.*

## STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this RCA, this flaw, this right — is strong. Answer five questions in writing.

**1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.

**2. Where is it, and what does it touch?** Get the boundaries and lay them over protected land, water and glaciers, Indigenous territory, and communities. **Indigenous rights and water are among Chile's sharpest levers**, so this map is your most important document.

**3. What stage is it at, and what's the next deadline?** Is the PAC open? Has the RCA issued (starting the 30-day reclamación clock, and the protección window)? These openings are strictly time-bound.

**4. What does it still need that it lacks?** An RCA not final, permits not granted, financing not closed. The missing piece is the soft spot.

**5. Who else is affected, and who already opposes it?** Neighbours, the Indigenous community, local and national organisations. HidroAysén began with one group in Cochrane.

**What this looks like in real life.** A community learns a mine or dam is planned on its water and near Indigenous land, entering via a DIA with no participation. The five questions yield: a named company behind it; a site on water and Indigenous territory (the sharp levers); a DIA that should trigger participation; a project still needing a final RCA; and a coalition of neighbours and the Indigenous community. That's the HidroAysén pattern — demand the participation, build the case, and be ready for the reclamación and the courts.

## STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

**Layer one: the paper trail.** Get the documents the decision rests on — the EIA or DIA, the RCA and its conditions, the participation record, the consulta record, the water and species studies. Chile's access-to-information rights (strengthened by the Escazú Agreement) let you demand what isn't public. Then read the study hard for flaws — an understated impact, an ignored alternative, a botched participation, a consulta skipped.

**Layer two: the ground truth.** Dated, located photographs and video of the site, the rivers, the glaciers, the habitat — baseline images before any damage most of all — and the testimony of affected neighbours.

**Layer three: the map of rights and water.** Lay the project over Indigenous territory, protected areas, water sources and glaciers, so each lever is visible. Walking into the SEA, the environmental court, or the Committee of Ministers with the study, the RCA, and that map is what makes them act.

## WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA/DIA, the RCA and conditions, the participation and consulta records, the water and species studies** — from the SEA; force out the rest under the access-to-information rules (8A).
- **Municipal and sectoral permits** — from the municipality and the sectoral services.
- **Ownership and financing** — company records and investor documents.
- **The rights-and-water map** — Indigenous territory, protected areas, water sources, and glaciers, laid over the site.

- **Dated site evidence and named testimony** — photographs marked with date and place, and neighbours' statements.

## STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Patagonia Sin Represas grew from one small town into a national coalition. Build yours in four moves.

**Start with a tight core.** The neighbours most affected, the people who know the land and water, a few tireless organisers, and respected local figures — HidroAysén started in Cochrane.

**Widen the circle.** Pull in the surrounding communities, the regional and national organisations, and the wider public. Hold meetings where people see the evidence — the map of the project over the water and the Indigenous land.

**Centre Indigenous leadership where it applies.** Where consulta and Indigenous rights are engaged, they are among the strongest levers in the fight; build the campaign around supporting that leadership, at their direction.

**Bring in the experts and national allies — early.** Reach Chile's environmental organisations and public-interest lawyers, and the scientists who can dismantle a weak study. The reclamación and the environmental courts are accessible enough that a supported community can carry its own case.

**Build to last.** Chilean fights can run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and know the Escazú Agreement's protections for defenders, though direct action still warrants legal advice first.

## STEP 4: LEGAL CHALLENGES, THE ENVIRONMENTAL COURTS & CONSULTA

Law is one of Chile's sharpest levers, because the country built courts and bodies specifically to hear environmental cases.

### Participate First — It Unlocks the Reclamación

Everything downstream depends on your having filed **observations in the PAC**. The SEA must respond to them in the RCA, and — crucially — only those who filed observations can later bring a **reclamación**. If a DIA that imposes environmental burdens skips participation, that itself is a ground: the Supreme Court has voided an RCA and ordered participation held.

### The Reclamación, the Environmental Courts, and the Supreme Court

If the RCA is granted, those who participated can file a **recurso de reclamación within 30 days** — for an EIA, to the **Committee of Ministers** (the body that overturned HidroAysén); for a DIA, to the SEA Executive Director. If that fails, take the case to the **environmental court** (*Tribunal Ambiental*), the specialised court that reviews RCAs and SMA decisions, with appeal to the **Supreme Court**. These are technical venues where a defective study, an inadequate participation, or an ignored impact can annul the permit.

### The Recurso de Protección and Consulta Indígena

Chile's fast constitutional tool is the **recurso de protección**, filed at the **Court of Appeals within 30 days**, invoking the constitutional right to live in an environment free of contamination — it can suspend or void an RCA and order participation, and it climbs to the Supreme Court. And where a project affects Indigenous peoples, **consulta indígena** under **ILO Convention 169** is mandatory; a project that skipped or botched it is on weak legal ground. The **SMA**, finally, is your enforcement lever once a project is built — it can sanction and revoke for breaches.

## The Honest Limits

Straight talk: Chile's environmental architecture is real and has overturned major permits, but litigation is slow, a determined state and powerful companies are hard opponents, and the deadlines (30 days for the *reclamación* and the *protección*) are strict. So use the strong tools — the participation, the *reclamación*, the environmental courts, the *protección*, *consulta* — but pair them with the movement and the media, be ready for a long fight, and count an overturned or conditioned RCA, delay, and exhaustion as wins alongside a clean stop.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

**A document becomes a legal flaw.** Not "the study is bad" but *"the DIA imposed environmental burdens and skipped citizen participation — so, as the Supreme Court has held, the RCA is void."*

**A right becomes a barrier.** *"This affects Indigenous territory; consulta under ILO 169 was mandatory and never properly held."*

**Water becomes the strongest claim.** *"This would destroy the water and glaciers our community and ecosystems depend on."*

**The harm becomes a public story.** *"The wild rivers, the water, the land our community has always known — for a project we were told was inevitable."*

Match it to the venue: the observations to the SEA; the *reclamación* to the Committee of Ministers; the flaw to the environmental court; the constitutional right to the Court of Appeals; the human and the landscape to the press.

## STEP 5: MEDIA STRATEGY

In Chile, publicity is power — Patagonia Sin Represas made two remote rivers a national cause, and that attention was decisive. A free press, an engaged public, and a strong movement make the media front central.

**Lead with people and place, not procedure.** Not "the RCA was procedurally deficient" but "the wild rivers, the water, the land our community has always known — for a project we were told was inevitable." Use your strongest material: dated photographs, the map of the project over the water and the Indigenous land, named voices, and any win banked.

**Work several audiences at once.** Local and national press build political pressure; the environmental movement amplifies; international media reach the project's investors. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

**Two hard rules.** Accuracy above all — one exaggeration can discredit everything. And protect people — know the Escazú defender protections, and get legal advice before any direct action.

## EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

### **8A — Access-to-information request (to the SEA).**

*Subject: Solicitud de información ambiental — [proyecto].*

"Under the access-to-information rules, we, residents of [place], request the EIA/DIA, the RCA and its conditions, the participation and consulta records, and the water and species studies for [project] at [location]. [Contact.]"

### **8B — Observations in the participación ciudadana.**

*Subject: Observaciones ciudadanas — [proyecto].*

"We, residents of [place], oppose the approval of [project]: [the study understates the impact on our water / Indigenous territory; a consulta was required and skipped; participation was inadequate]. We ask that these be addressed and the RCA be unfavourable. [Attach evidence.]"

### **8C — Recurso de reclamación (to the Committee of Ministers / SEA).**

*Subject: Recurso de reclamación contra la RCA — [proyecto].*

"Having filed observations, we reclaim against the RCA for [project], issued on [date], because [our observations were not properly considered / the participation was inadequate / consulta was skipped], and ask that the permit be overturned. [Attach the RCA and our evidence.]"

### **8D — To a public-interest lawyer / organisation.**

*Subject: Petición de apoyo legal — [proyecto] en [lugar].*

"Our community faces [project], which threatens [our water / Indigenous land]. We've gathered [the study, the RCA, photographs] and believe there are grounds before the environmental court and for a recurso de protección. We ask for your help and to work as partners. [Contact and evidence summary.]"

### **8E — To a financier or investor.**

*Subject: Riesgo ambiental y legal — [proyecto].*

"We understand your institution may be [financing] [project] at [location], which [destroys protected water / faces active legal challenge / skipped Indigenous consulta]. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

### **8F — Letter to the press.**

*Subject: [Community] moves to protect [river / water / land] from [project].*



"For generations the people of [place] have lived from [the river / the water] at [location]. Now [project], by [company], threatens to destroy it — and we were told it was inevitable. We can provide photographs, documents, a map and interviews. [Contact.]"

#### **8G — Complaint to the SMA (enforcement).**

*Subject: Denuncia — incumplimiento de la RCA de [proyecto].*

"We report that [project] is operating in breach of its RCA conditions: [specifics]. We ask the Superintendence to investigate and sanction. [Attach evidence.]"

#### **8H — Rallying the community.**

*Subject: We can stop this — here's how.*

"[Project] threatens [our river / water / land]. At HidroAysén, a group from Cochrane and its allies overturned a five-dam mega-scheme over seven years. With citizen participation, the environmental courts, consulta, and the movement behind us, we have a real chance. The first thing to refuse is the idea that it's inevitable. Please join us. [Contact.]"

## **IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION**

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for Indigenous land and water.** Consulta and water are your sharpest levers.
2. **File observations in the participación ciudadana (8B) — or demand one if a DIA skipped it.** This is what unlocks the reclamación.
3. **Request the study and RCA (8A), and read them for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Watch the 30-day clocks and act (8C/8D):** the reclamación to the Committee of Ministers, and the recurso de protección to the Court of Appeals.
6. **Go public and build the movement (8F).** Refuse the presumption of inevitability — that's how HidroAysén began.

Even lean, those six use your rights, protect the deadlines, build the record, and open the legal fronts.

## **WHEN THE SYSTEM IS TILTED**

Chile's tools are real, but the field can be tilted, and you must plan for it.

**When the state and companies back the project.** HidroAysén had powerful backing and a permit approved eleven-to-one. Don't fold: use the reclamación, the environmental courts, the protección, and consulta, keep the movement alive, and — above all — refuse the idea that it's inevitable.

**When a DIA skips participation.** A lighter DIA can be used to dodge citizen participation. That's a ground, not a dead end: the Supreme Court has voided an RCA and ordered participation held.



**When the deadlines are tight.** The 30-day windows for the reclamación and the protección are strict. Move early — get the study, the lawyer, and the coalition ready before the RCA issues.

**What still works, and it's a lot.** Chile's environmental courts, the Committee of Ministers, the recurso de protección, consulta under ILO 169, and the SMA's enforcement power are genuine, accessible levers — and a determined movement has overturned a mega-scheme with them.

## WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Chile is, by regional standards, well-governed — but the closeness of powerful companies to decision-makers can bend a permit, and where it does, you expose it.

**How to spot it.** RCAs granted against the technical evidence; a participation engineered to exclude the affected; revolving doors between companies and the regulator; benefits to the connected while the community carries the harm.

**Who's supposed to guard against it.** The **Comptroller General (Contraloría)** examines the legality of official acts. The **public prosecutor (Ministerio Público)** handles graft. The **environmental courts** can annul a tainted RCA, and the **SMA** can sanction. And Chile's **investigative press** has exposed captured approvals.

**How to fight it safely.** Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Contraloría, the prosecutor, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

## INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the water and Indigenous rights aims it; organising builds the muscle; the reclamación and the courts press the case; the media raises the cost. Together they multiply. One at a time, they stall.

**Early on (weeks 1–8):** nail down the project, its footprint, and any Indigenous land or water; file observations in the PAC (or demand one); request the study and RCA; photograph the baseline; team up with a lawyer and national allies; build your core.

**In the thick of it (months–years):** the moment the RCA issues, file the reclamación and, if warranted, a recurso de protección — within 30 days; take the case to the environmental court; press the consulta grounds; deepen the coalition and the expert critique; open the media front.

**The long haul (years):** carry the case through the environmental courts and the Supreme Court; keep the movement and the pressure alive; hold the line for an overturned or conditioned RCA, delay, or an outright stop.

## FINAL ASSESSMENT

Stopping a destructive project in Chile can be done — a group from a small Patagonian town and its allies overturned a five-dam mega-scheme that everyone had called inevitable. Hold both truths. Chile's tools are real and, in parts, unusually strong: a purpose-built environmental architecture with specialised courts; a

Committee of Ministers that has overturned permits; a fast constitutional protección; mandatory Indigenous consulta under ILO 169; an enforcement superintendence; and the Escazú Agreement's access rights and defender protections. And the constraint is real: powerful backers, a slow fight, and strict deadlines.

Here's the discipline that wins. Find the water and the Indigenous rights, and the flaw in the study, and pry loose the record. File your observations in the participación ciudadana — it unlocks everything. The moment the RCA issues, file the reclamación and, if warranted, a recurso de protección within 30 days, and take the case to the environmental court. Press consulta. Build your coalition and carry the story to the public — and, first of all, refuse the presumption that the project is inevitable. Count an overturned or conditioned RCA, delay, and exhaustion as wins alongside a clean stop. That's what Patagonia Sin Represas did — the participation, the courts, and a movement that would not quit. So can you.